

Like many other universities, UvA uses Proctorio surveillance software to prevent students from cheating on online exams by looking things up or sharing answers with one another. The program uses students' webcams, microphones and browser activity to monitor them while they take their exam, and also tracks their mouse movements and keyboard use. Any suspicious activity is automatically reported, after which an invigilator can review the data.

According to the student councils, UvA should have first sought students' permission

([https://www.erasmusmagazine.nl/en/2020/06/04/students-sue-university-over-webcam-monitored-exams/?](https://www.erasmusmagazine.nl/en/2020/06/04/students-sue-university-over-webcam-monitored-exams/?noredirect=en_US)

[noredirect=en_US](https://www.erasmusmagazine.nl/en/2020/06/04/students-sue-university-over-webcam-monitored-exams/?noredirect=en_US)) before allowing invigilators to access their data. The national umbrella organisations for higher education participation councils supported this standpoint. In addition, the organisations argued that the use of this type of surveillance software is in violation of European privacy law (the GDPR).

Lawful use

The Amsterdam District Court thought differently, however, ruling that UvA's use of online invigilation is not illegal. The Court's decision was primarily based on the statutory examination regulations, which explicitly state that student councils have no right of consent when it comes to invigilation policies. This means that there was no legal reason for UvA to seek the councils' permission.

The Court also ruled that UvA's use of surveillance software does not constitute a violation of students' privacy. UvA's public task as an educational institution – to provide

by law. As such, the GDPR allows universities to process personal data to the extent that this is necessary to perform their task. The Court agreed with UvA that the coronavirus measures require certain exams to be administered online, and that universities should make efforts to prevent fraud in doing so.

UvA's handling of students' data was also ruled to be GDPR-compliant: through its agreement with software provider Proctorio, the company was also bound to European privacy law. The Court further noted that the online surveillance process does not involve live monitoring – invigilators are only granted access to the data once the program has detected significant abnormal behaviour. Finally, the data is encrypted and automatically destroyed after 30 days.

Eindhoven

TU/e's Executive board is relieved. "We are content with the court's decision on this matter", says Frank Baaijens. "The judge clearly states that proctoring is necessary and allowed, so that the university can continue to carry out its public duty under the current circumstances. It's a good thing that this last resort in online examination remains available, because it's essential at this point that we prevent study delay on a large scale, and that we guarantee the quality of the diplomas."



<https://web.whatsapp.com/send?text=https%3A%2F%2Fwww.cursor.tue.nl%2Fen%2Fnews%2F2020%2Fjuni%2F>

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STUDENT THE UNIVERSITY 03/11/2020

After the IT issues reported by the University of Amsterdam last month, the University of Groningen is now also struggling with major disruptions during online exams due to technical difficulties. Hundreds of exams have been cancelled.

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Cl (Ven) **21 students request opt-out for proctoring**

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The central registration at Education and Student Affairs (ESA) received 21 opt-out requests from students for online proctored exams. Online proctoring will be used for one in five exams during the coming exam period, rector Frank Baaijens told the University Council yesterday. The number of opt-out request could still increase, says ESA director Patrick Groothuis, because students may have submitted their requests to their own exam committees.

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STUDENT EDUCATION 09/06/2020

Fifty students can decline online proctoring

A maximum of fifty TU/e students who have serious objections to online proctoring, which involves the student being recorded, will be allowed not to participate in a proctored exam during the coming exam period. The application for this 'opt-out' must be submitted before Saturday June 13th, and the appropriate online form must be used. In the event of more than fifty requests, the possibility of sitting an on-campus exam at a later date will be revoked for all the applicants.

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